

Smt. G. M. Pushpalatha vs Sri. Gurubasappa. H on 11 December, 2018

Author: B.Veerappa

Bench: B. Veerappa

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 11TH DAY OF DECEMBER, 2018

BEFORE

THE HON' BLE MR. JUSTICE B. VEERAPPA

WRIT PETITION No.47501/2018(GM-FC)

BETWEEN:

SMT. G. M. PUSHPALATHA
W/O GURUBASAPPA H
AGED ABOUT 52 YEARS,
WORKING AS F.D.A.
PRL. CIVIL JUDGE
CHIKKANAYAKANAHALLI-572214
TUMAKURU DISTRICT.

... PETITIONER

(BY SRI V. B. SIDDARAMAIAH, ADVOCATE)

AND:

SRI. GURUBASAPPA. H
S/O LATE ADAVEESHAPPA
AGED ABOUT 57 YEARS,
R/AT 1ST CROSS,
COTTONPET
BEHIND CHINIVARAKATTE
BASAVANNA TEMPLE,
TUMAKURU CITY-572102

... RESPONDENT

.....

THIS WRIT PETITION IS FILED UNDER ARTICLE 227
OF THE CONSTITUTION OF INDIA PRAYING TO SET ASIDE
THE ORDER DATED 24.9.2018 PASSED BY THE PRL.
JUDGE, FAMILY COURT, TUMAKURU, PASSED ON I.A. NO.
III FILED BY THE RESPONDENTS UNDER SECTION 24 OF

THE HINDU MARRIAGE ACT, IN M.C. NO. 145/2017 VIDE ANNEXURE-E AND CONSEQUENTLY DISMISS THE APPLICATION FILED BY THE RESPONDENT UNDER SECTION 24 OF THE HINDU MARRIAGE ACT, IN M.C. NO. 145/2017 VIDE ANNEXURE-C.

THIS WRIT PETITION COMING ON FOR PRELIMINARY HEARING THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

The petitioner-wife has filed the present writ petition against the order dated 24.09.2018 made in M.C.No.145/2017 on the file of the Prl. Judge, Family Court, Tumakuru, allowing the application in part filed by the respondent-husband under Section 24 of the Hindu Marriage Act, 1955, awarding interim maintenance of `5,000/- per month from the date of filing the application, till disposal of the case.

2. The present respondent-husband filed M.C.No. 145/2017 under Section 9 of the Hindu Marriage Act, 1955, ('Act' for short) for restitution of conjugal rights, raising various grounds. The petitioner-wife filed objections, denied the averments made in the petition and sought for dismissal of the petition. During pendency of the proceedings, husband filed an application under Section 24 of the 'Act' to award maintenance and litigation expenses of `12,000/- per month, reiterating the averments made in the petition. The wife filed objections to the said application and denied the averments and sought for dismissal of the application.

3. The Family Court, considering the application and the objections, by the impugned order dated 24.09.2018, allowed the application in-part and directed the wife to pay `5,000/- per month to the husband as interim maintenance from the date of filing of the application till disposal of the case on merits or till further order, whichever is earlier. The wife was directed to deposit the entire arrears of maintenance amount at the said quantum from the date of the application till the date of order and to continue to pay regularly till disposal of the petition on merits as per law or till further order whichever is earlier. Hence the present writ petition is filed.

4. I have heard the learned counsel for the petitioner.

5. Sri V.B.Siddaramaiah, learned counsel for the petitioner-wife contended that the impugned order passed by the Family Court granting `5,000/- per month to the respondent-husband is without any basis. The Family Court failed to appreciate that the husband has not proved that he has no capacity to earn livelihood. The husband is educated, he is hale and healthy and he is having all opportunity to earn his livelihood. The Family Court has passed a mechanical order, without giving sound and justifiable reasoning to allow the application and therefore, sought to allow the writ petition, by quashing the impugned order.

6. Having heard the learned counsel for the petitioner, it is undisputed fact that the respondent herein-husband filed a petition under Section 9 of the 'Act' for restitution of conjugal rights, raising various contentions. The same was resisted by the wife by filing objections and also filed counter claim and sought for a decree of divorce. It is also not in dispute that the husband filed an application under Section 24 of the 'Act' for interim maintenance and litigation expenses, during pendency of the petition. It was contended that after ten years of the marriage, he was put to lot of harassment and mental agony at the hands of his wife. She never treated him with love and affection. The relatives and well wishers attempted to change the behaviour of the wife to lead a happy marital life, but she remained unchanged.

7. He further contended that the wife has deserted him. She has no intention to save the marital life and she has subjected him to mental cruelty by her immoral behaviour and she had broken all barriers of decent life in a healthy society. He is suffering from diabetes and blood pressure. He was made to suffer humiliation and put to unbearable shame by the wife. He is left penniless and starving to meet both the ends. He is unable to maintain himself. He is left alone in this world by all the persons concerned and he is leading a highly dejected and miserable life. Therefore, he requires a sum of `12,000/- per month towards his livelihood, medical expenses and other day to day expenses. The wife is working as a First Division Assistant in Chikkanayakanahalli Court and she is earning `40,000/- per month and therefore, sought to allow the application.

8. The wife filed objections and denied the averments made in the application. In the entire objections, the wife has not stated anything about the income of the husband and has not denied the allegation that he has no income to maintain himself. The only objection raised is that the salary is her hard earned money and therefore, sought to dismiss the application.

9. The Family Court, considering the fact that there is no dispute with regard to the relationship of husband and wife between the parties and in view of the fact that the wife is working as a First Division Assistant in Chikkanayakanahalli Court and getting salary of `40,000/- per month and the husband has no income, recorded a finding that, on careful perusal of the materials placed before the Court, it is clear that the petitioner is unemployed and is suffering from diabetes. His efforts to secure job went in vain and that therefore he was doing some coolie work and out of the said income, he is maintaining his family. At present, the respondent is having a permanent job and earning a handsome salary. Till the petitioner is capable of earning money, it is the duty of the wife to maintain her husband. Therefore, awarded maintenance of `5,000/- per month to the husband as interim maintenance from the date of filing this interim application till disposal of this case on merits or till further order whichever is earlier.

10. It is relevant to consider the provisions of Section 24 of the Hindu Marriage Act, 1955, that "Where in any proceeding under this Act it appears to the Court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of the wife or the husband, order the respondent to pay to the petitioner the expenses of the proceeding, and monthly during the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the Court to be reasonable."

11. In view of the above, the Family Court considered the entire material on record and felt that the husband has no independent source of income sufficient to support himself and necessary expenses, taking note of the fact that the wife is working as a First Division Assistant in Chikkanayakanahalli Court and earning `40,000/- per month and awarded maintenance of `5,000/- per month to the husband. The same is in accordance with law. The petitioner-wife has not made out any ground to interfere with the impugned order in exercise of powers under Articles 226 and 227 of the Constitution of India. Accordingly, Writ Petition is dismissed.

Sd/-

JUDGE kcm